

SENATE No. 543

The Commonwealth of Massachusetts

PRESENTED BY:

Michael J. Barrett

To the Honorable Senate and House of Representatives of the Commonwealth of Massachusetts in General Court assembled:

The undersigned legislators and/or citizens respectfully petition for the adoption of the accompanying bill:

An Act to reduce the unnecessary use of plastic straws.

PETITION OF:

NAME:

Michael J. Barrett

DISTRICT/ADDRESS:

Third Middlesex

SENATE No. 543

By Mr. Barrett, a petition (accompanied by bill, Senate, No. 543) of Michael J. Barrett for legislation to reduce disposable plastic straw waste. Environment and Natural Resources.

[SIMILAR MATTER FILED IN PREVIOUS SESSION
SEE SENATE, NO. 443 OF 2023-2024.]

The Commonwealth of Massachusetts

In the One Hundred and Ninety-Fourth General Court
(2025-2026)

An Act to reduce the unnecessary use of plastic straws.

Be it enacted by the Senate and House of Representatives in General Court assembled, and by the authority of the same, as follows:

1 SECTION 1. Chapter 140 of the General Laws, as appearing in the 2022 Official Edition,
2 is hereby amended by inserting after section 6B the following section:-

3 Section 6C. (a) As used in this section, the following terms shall have the following
4 meanings:

5 “Biodegradable materials”, compostable materials such as wood, paper, bagasse or other
6 cellulose fiber composite. Materials composed of biologically based polymers that do not
7 reliably biodegrade in aquatic environments are not considered biodegradable.

8 “Consumer”, a person receiving food or beverages from a food service establishment.

9 “Department”, the Department of Environmental Protection.

“Food service establishment”, an operation that stores, prepares, serves, vends or otherwise provides food for human consumption. Food service establishments include without limitations full-service restaurants, food trucks, self-service food establishments and fast-food establishments.

“Single-use plastic straw”, a single-use, disposable drinking straw made of plastic derived from petroleum-based polymers or non-biodegradable biological polymer. A single-use plastic straw does not include reusable drinking straws or straws made from biodegradable material.

“Reusable straw”, a drinking straw that can be appropriately cleaned and sanitized for customer reuse.

(b) A food service establishment may not provide a single-use plastic straw unless requested by a consumer or selected by the consumer from a self-service dispenser.

(c) The department shall promulgate regulations with regard to the enforcement of this chapter.

SECTION 2. This act shall go into effect on January 2, 2027.